

24CV06930 People of the State of California v. Eighty-Seven Thousand Six Hundred and Fourteen Dollars (\$87,614) U.S. Currency

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-06-17

Motion: Motion for Default Judgment

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Tentative Ruling: People of the State of California v. Eighty-Seven Thousand Six Hundred and Fourteen Dollars (\$87,614) U.S. Currency

Case Number

24CV06930

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 06/17/2026 - 10:00

Nature of Proceedings

Motion for Default Judgment

Tentative Ruling

For Plaintiff The People of the State of California: John T. Savrnock, Office of the District Attorney

For Defendants Eighty-Seven Thousand and Six Hundred and Fourteen Dollars U.S. Currency and Sabas Hernandez: No appearances

RULING

For the reasons set forth herein, the motion of Plaintiff The People of the State of California is continued to August 19, 2026. On or before August 5, 2026, Plaintiff shall file supplemental briefing with the Court as further described herein, and in

accordance with this ruling.

Background

As alleged in the petition of The People of the State of California (the People):

On December 7, 2023, during a traffic stop in Carpinteria, California, detectives with the Santa Barbara County Sheriff's Office (SBSO) served a search warrant on Saba Hernandez. (Petition, ¶ 7.) While searching Hernandez and his vehicle, the detectives located a black bag containing a white digital scale, several zip lock bags containing suspected fentanyl and methamphetamine, two cell phones in the center console of the vehicle, currency in the amount of \$1,581 in Hernandez's wallet, and additional currency in the amount of \$2,030 inside a black pouch. (Ibid.)

After the stop, and pursuant to a search warrant, the detectives searched Hernandez's apartment located at 1502 San Pascual Street in Santa Barbara, where they located \$23,950 inside a black sock in the dresser, \$18,816 in a clear bag below the mattress, and a large reusable grocery bag containing clear bags with \$6,325, \$14,208, and \$20,700 in cash. (Petition, ¶ 7.) Based on this and other evidence collected, Hernandez was arrested for violations of Health and Safety Code sections 11351, 11352, 11378, and 11379, subdivision (a) (Petition, ¶¶ 4 & 7.)

The property at issue is presently located at, and under the control of, the SBSO in Santa Barbara, California, represents proceeds traceable to exchanges for a controlled substance, and was used or intended to be used to facilitate violations of Health and Safety Code sections 11351, 11352, 11378, and 11379, subdivision (a).. (Petition, ¶¶ 5 & 6(a), (b).)

On December 6, 2024, the People filed a petition against Defendant \$87,614 United States Currency (Defendant or the Property), seeking forfeiture of the Property under Health and Safety Code section 11470, subdivision (f). The petition, which is brought pursuant to Health and Safety Code section 11488.4, seeks an order declaring all interests in the Property forfeited, and directing that the Property be disposed of as required by Health and Safety Code section 11489.

No opposition or other response to the petition has been filed with the Court.

On February 20, 2026, the People filed a motion for a default judgment pursuant to Health and Safety Code section 11488.5, subdivision (b)(1). In support of that motion, district attorney Adam C. Howland (attorney Howland) states that Hernandez was charged with violations of Health and Safety Code sections 11352, 11351, 11379, and 11378, in Santa Barbara Superior Court case no. 23CR08529, and pleaded guilty to those charges as to Health and Safety Code section 11352 and 11379 on January 18, 2024. (Howland Dec., ¶¶ 5-6.) As part of that plea, Hernandez agreed to "forfeit all cash seized." (Howland Dec., ¶ 7.)

Attorney Howland further states that Hernandez was sentenced on February 14, 2024, and that the "Presentence Report" attached to the motion reiterates Hernandez's forfeiture of all cash seized. (Howland Dec., ¶¶ 8; exhibit 2 [Presentence Report].)

Attorney Howland asserts that Hernandez was served with the petition by mail, and has not filed any objection or response. (Howland Dec., ¶¶ 10-11.) According to attorney Howland, no other claimants have made themselves known, and the People have no reason to believe that any other interested parties exist. (Howland Dec., ¶ 12.)

The motion was set for hearing on April 22, 2026. No opposition or other response to the motion was filed with the Court.

On April 22, 2026, after a hearing, the Court entered a minute order (the Order) adopting its tentative ruling on the motion as follows:

"Health and Safety Code section 11488 provides: "Any peace officer of this state, subsequent to making or attempting to make an arrest for a violation of [Health and Safety Code] [s]ection 11351, 11351.5, 11352, 11355, 11359, 11360, 11378, 11378.5, 11379, 11379.5, 11379.6, or 11382 of this code, or Section 182 of the Penal Code insofar as the offense involves manufacture, sale, purchase for the purpose of sale, possession for sale or offer to manufacture or sell, or conspiracy to commit one of those offenses, may seize any item subject to forfeiture under subdivisions (a) to (f), inclusive, of Section 11470." (Health & Saf. Code, § 11488, subd. (a).)

Subject to exception not applicable here, "if the Department of Justice or the local governmental entity determines that the factual circumstances do warrant that the moneys, negotiable instruments, securities, or other things of value seized or subject to forfeiture come within the provisions of subdivisions (a) to (g), inclusive, of [Health and Safety Code] [s]ection 11470, and are not automatically made forfeitable or subject to Court order of forfeiture or destruction by another provision of this chapter, the Attorney General or district attorney shall file a petition of forfeiture with the superior Court of the county in which the Defendant has been charged with the underlying criminal offense or in which the property subject to forfeiture has been seized or, if no seizure has occurred, in the county in which the property subject to forfeiture is located." (Health & Saf. Code, § 11488.4, subd. (a)(1).) "A petition of forfeiture under this subdivision shall be filed as soon as practicable, but in any case within one year of the seizure of the property that is subject to forfeiture, or as soon as practicable...." (Health & Saf. Code, § 11488.4, subd. (a)(2).)

Absent any dispute, the petition is sufficient to show that the Property was seized pursuant to Health and Safety Code section 11488, and is subject to forfeiture pursuant to subdivision (f) of Health and Safety Code section 11470. As the petition shows, without dispute, that the Property was seized on December 6, 2023, the petition is timely.

"The Attorney General or district attorney shall make service of process regarding this petition upon every individual designated in a receipt issued for the property seized. In addition, the Attorney General or district attorney shall cause a notice of the seizure, if any, and of the intended forfeiture proceeding, as well as a notice stating that any interested party may file a verified claim with the superior Court of the county in which the property was seized or if the property was not seized, a notice of the initiation of forfeiture proceedings with respect to any interest in the property seized or subject to forfeiture, to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized. Whenever a notice is delivered pursuant to this section, it shall be accompanied by a claim form as described in Section 11488.5 and directions for the filing and service of a claim." (Health & Saf. Code, § 11488.4, subd. (c).)

"When a forfeiture action is filed, the notices shall be published once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or where the property subject to forfeiture is located." (Health & Saf. Code, § 11488.4, subd. (e).) Further, those notices "shall set forth the time within which a claim of interest in the property seized or subject to forfeiture is required to be filed pursuant to Section 11488.5. The notices shall explain, in plain language, what an interested party must do and the time in which the person must act to contest the forfeiture in a hearing. The notices shall state what rights the interested party has at a hearing. The notices shall also state the legal consequences for failing to respond to the forfeiture notice." (Health & Saf. Code, § 11488.4, subd. (f).)

"Any person claiming an interest in the property seized pursuant to [Health and Safety Code] [s]ection 11488 may, unless for good cause shown the Court extends the time for filing, at any time within 30 days from the date of the last publication of the notice of seizure, if that person was not personally served or served by mail, or within 30 days after receipt of actual notice, file with the superior Court of the county in which the Defendant has been charged with the underlying or related criminal offense or in which the property was seized or, if there was no seizure, in which the property is located, a claim, verified in accordance with Section 446 of the Code of Civil Procedure, stating the claimant's interest in the property." (Health & Saf. Code, § 11488.5, subd. (a)(1).)

"Any person who claims that the property was assigned to that person prior to the seizure or notification of pending forfeiture of the property under this chapter, whichever occurs last, shall file a claim with the Court and prosecuting agency pursuant to Section 11488.5 declaring an interest in that property and that interest shall be adjudicated at the forfeiture hearing." (Health & Saf. Code, § 11488.5, subd. (a)(2).)

"If at the end of the time set forth in subdivision (a) [of Health and Safety Code section 11488.5] there is no claim on file, the Court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." (Health & Saf. Code, § 11488.5, subd. (b)(1).)

For the reasons discussed herein, the Court will continue the hearing on the motion to permit the People to correct or explain the deficiencies addressed in this ruling, and, if appropriate, any other deficiencies that may exist.

The Presentence Report submitted in support of the motion includes a document titled "Circumstances of Offense." (Motion, exhibit 2.) That document shows that, at the time of the traffic stop on December 7, 2023, Rachel Leeanne Walsh was a passenger in Hernandez's vehicle; that Walsh had an outstanding misdemeanor warrant due to drug related charges; that deputies arrested Walsh; and that during the search of Hernandez's vehicle, deputies located money in a backpack in the backseat. (Id. at p. 2, ll. 8-22.) The document also shows that a search of Hernandez's residence yielded monies located inside a black sock and in clear bags; that Hernandez reported that the drugs located in the vehicle belonged to Walsh; and that a search of Hernandez's cell phone yielded text messages depicting drug sales which Hernandez claimed were sent to and received by Walsh. (Id. at p. 2, l. 23 – p. 3, l. 8.)

Under Health and Safety Code section 11488, "[r]eceipts for property seized pursuant to [that] section shall be delivered to any person out of whose possession such property was seized, in accordance with Section 1412 of the Penal Code. In the event property seized was not seized out of anyone's possession, receipt for the property shall be delivered to the individual in possession of the premises at which the property was seized." (Health & Saf. Code, § 11488, subd. (b).) The People must "make service of process regarding [the] petition upon every individual designated in a receipt issued for the property seized." (Health & Saf. Code, § 11488.4, subd. (c).)

The Court infers from the available evidence and information described above that a receipt for the Property was delivered to Hernandez. On January 9, 2025, the People filed a proof of service of the petition, stating that the petition was mailed to Hernandez at the following address: 1502 San Pascual Street, Apartment B. (Jan. 9, 2025, Proof of Service, ¶¶ 4-5.) The motion also asserts that Hernandez agreed to forfeit all cash seized.

Even if the Court were to assume without deciding that service of the petition on Hernandez was proper or that Hernandez waived any notice required by the Health and Safety Code (and absent appropriate citations to the record, the Court presently makes no findings as to those issues), it is unclear to the Court whether Walsh was designated in any receipt for the Property. To the extent Walsh was designated in or delivered a copy of any such receipt, there is no information or evidence showing that Walsh was served with process regarding the petition, or any notices required by Health and Safety Code section 11488.4.

The petition and motion also present no information or evidence showing that any notices required by Health and Safety Code section 11488.4 were given, or were published once a week for three successive weeks in a newspaper of general circulation in the county where the seizure was made or the Property is located. For these reasons, the petition and motion are not procedurally appropriate, fail to show whether the time period set forth in subdivision (a) of Health and Safety Code section 11488.5 has ended, and do not allow the Court to make the declaration or order described in subdivision (b) of section 11488.5.

The examples provided herein are intended to be illustrative but not exhaustive, and, absent appropriate citations to the record, the Court declines to issue an advisory opinion as to whether the petition or motion are appropriate or statutorily compliant in all other respects. For all reasons further discussed above, the Court will continue the hearing on the motion to permit the People an opportunity to submit supplemental briefing which corrects or explains the deficiencies described herein, and any other deficiencies, if appropriate."

Pursuant to the Order set forth above, the Court continued the motion to June 17, and ordered the People to, on or before June 3, 2026, file the supplemental briefing described in the Order.

On May 28, 2026, the People filed a supplemental brief, in support of which attorney Howland states that their review of various police reports associated with the parallel criminal matter shows that the Property was seized from Hernandez on December 7, 2023; that the whereabouts of Hernandez are currently unknown based on attorney Howland's conversations with investigator Chad Hunt and review of that investigator's notes; that Walsh did not claim ownership of the money seized from Hernandez, or any money; and that no receipt was issued to Walsh. (Howland Supp. Dec., ¶¶ 4-6.)

In addition, attorney Howland states that they made an error in filing the motion without confirming that the required publication had occurred. (Howland Supp. Dec., ¶ 7.) Attorney Howland has caused a notice of forfeiture to be published in the Pacific Coast Business Times for three consecutive weeks from May 8 through May 14, 2026; from May 15 through May 21, 2026; and from May 22 to May 28, 2026. (Ibid.) Attorney Howland states that they personally received physical copies of the Pacific Coast Business Times for those three weeks and has confirmed that required information was published in the notice. (Ibid.)

Analysis

Subject to exception not applicable here, "if the Department of Justice or the local governmental entity determines that the factual circumstances do warrant that the moneys, negotiable instruments, securities, or other things of value seized or subject to forfeiture come within the provisions of subdivisions (a) to (g), inclusive, of [Health and Safety Code] [s]ection 11470, and are not automatically made forfeitable or subject to Court order of forfeiture or destruction by another provision of this chapter, the Attorney General or district attorney shall file a petition of forfeiture with the superior Court of the county in which the Defendant has been charged with the underlying criminal offense or in which the property subject to forfeiture has been seized or, if no seizure has occurred, in the county in which the property subject to forfeiture is located." (Health & Saf. Code, § 11488.4, subd. (a)(1).) "A petition of forfeiture under this subdivision shall be filed as soon as practicable, but in any case within one year of the seizure of the property that is subject to forfeiture, or as soon as practicable...." (Health & Saf. Code, § 11488.4, subd. (a)(2).)

For the same reasons discussed in the Order set forth above, the Court finds that the petition was timely filed.

"The Attorney General or district attorney shall make service of process regarding this petition upon every individual designated in a receipt issued for the property seized." (Health & Saf. Code, § 11488.4, subd. (c).)

Though information presented in the supplemental brief described above shows that Walsh was designated in any receipt for the Property, as to Hernandez, the motion asserts that Hernandez was served with the petition by mail as reflected in exhibit 4 to the motion. (Motion at p. 3, l. 4.) As noted in the Order set forth above, exhibit 4 contains the proof of service filed by the People in this case on January 9, 2025, which states that a copy of the petition was mailed to Hernandez at the following address: 1502 San Pascual Street, Apartment B, Santa Barbara, California. (Jan. 9, 2025, Proof of Service, ¶¶ 4-5.)

"Service of process refers to a formal delivery of documents that is legally sufficient to charge the Defendant with notice of a pending action. [Citations.] The legal sufficiency of a formal delivery of documents must be measured against some standard." (Rockefeller Technology Investments (Asia) VII v. Changzhou SinoType Technology Co., Ltd. (2020) 9 Cal.5th 125, 136.) Wholly absent from the motion, including the supplemental brief, is any reasoned legal or factual argument showing why the mailing of the petition to Hernandez at the address described above and in the proof of service is sufficient to make "service of process" of the petition upon Hernandez as required by Health and Safety Code section 11488.4. (Id. at p. 139 [general discussion of "service of process"]; see also Code Civ. Proc., § 17, subd. (b)(7) [defining "[p]rocess"].)

"In addition, the Attorney General or district attorney shall cause a notice of the seizure, if any, and of the intended forfeiture proceeding, as well as a notice stating that any interested party may file a verified claim with the superior Court of the county in which the property was seized or if the property was not seized, a notice of the initiation of forfeiture proceedings with

respect to any interest in the property seized or subject to forfeiture, to be served by personal delivery or by registered mail upon any person who has an interest in the seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized. Whenever a notice is delivered pursuant to this section, it shall be accompanied by a claim form as described in Section 11488.5 and directions for the filing and service of a claim.” (Health & Saf. Code, § 11488.4, subd. (c).)

The supplemental brief asserts that on December 7, 2023, detective Isaac Munoz signed a notice of forfeiture, and provided that notice to Senior Custody Deputy Luis Murillo who then personally served Hernandez with that notice in county jail. (Supp. Brief at p. 2.) Exhibit 1 to the supplemental brief is a document entitled “Notice of Seizure and of Forfeiture Proceedings Pursuant To Health and Safety Code Section 11488 Is Hereby Given To All Persons Named Below”, which the Court understands to be the notice of forfeiture described in the supplemental brief and above (the Notice of Forfeiture). The Notice of Forfeiture states that Hernandez may file a verified claim with the Santa Barbara Superior Court. (Supp. Brief, exhibit 1.)

Notwithstanding whether the present record is sufficient to show that the Notice of Forfeiture was personally delivered to Hernandez, or includes matters described in Health and Safety Code section 11488.4, the motion and the supplemental brief do not show, or explain why, that notice was accompanied by the claim form described in section 11488.5. For example, exhibit 1 to the supplemental brief does not include the claim form described in section 11488.4, subdivision (c), and the proof of service attached to the supplemental brief as exhibit 3 does not reflect that the Notice of Forfeiture was accompanied by a claim form.

The People also do not include or present any evidence or information showing why the Pacific Coast Business Times is “a newspaper of general circulation in the county where the seizure was made or where the property subject to forfeiture is located.” (Health & Saf. Code, § 11488.4, subd. (e); see also Gov. Code, § 6000 [defining “newspaper of general circulation”].) In addition, this case number does not appear to be included in the published notices contained in exhibit 5 to the supplemental brief, nor does that brief contain any citations to or explanation of where those notices appear in that exhibit.

For all reasons discussed above and in the Order, the supplemental brief is also deficient, and fails to cure the defects in the motion. For these reasons, the motion fails to show whether the time period set forth in subdivision (a) of Health and Safety Code section 11488.5 has ended, and fails to establish a prima facie case in support of the petition. (See Health & Saf. Code, § 11488.5, subd. (b)(1), (2).)

The examples provided herein are intended to be illustrative but not exhaustive, and, absent appropriate citations to the record in support of a prima facie case, the Court declines to issue an advisory opinion as to whether the motion is appropriate or statutorily compliant in other respects. For these and all further reasons discussed above, the Court will continue the hearing on the motion to permit the People another opportunity to correct or explain the deficiencies described herein, and if appropriate, any other deficiencies that the People may determine require further explanation or correction.

Judges

Judge Thomas Anderle

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